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Section

26. Seizure of goods.

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FIRST SCHEDULE: Areas where trading is prohibited or restricted.

SECOND SCHEDULE: Fees.

THIRD SCHEDULE: Penalty.

IT is hereby notified that the Minister responsible for Local Government has, in terms of section 229 of the Urban Councils Act [*Chapter 29:15*], made the following by-laws:—

Title

1. These by-laws may be cited as Plumtree Town (Hawkers and Vendors) By-laws, 2025.

Application

2. These by-laws shall apply to Plumtree Town area.

Interpretation

3. In these by-laws—

"appropriate fees" means the appropriate fee specified in the Second Schedule;

"authorised person" means any person employed or delegated by council to carry out any function in terms of these by-laws;

"contagious and infectious disease" means any disease specified in or declared as such in terms of the Public Health Act [*Chapter 15:17*] as an infectious disease;

"bay" means an area situated within a building or under a roof or other structure and whether or not is situated on a paved or unpaved surface;

"council" means Plumtree Town;

"council area" means the area under the jurisdiction of council;

"designated area" means a stand or site set aside for vending or flea market purposes;

"designated officer" means a person assigned by council to be in charge of people's markets;

"employer's licence" means a licence issued to an employer or issued to a person who will engage someone as a hawker, agent or a vendor agent;

"flea market" means a place or a type of bazaar where a number of stall or table holders carry on the business of selling inexpensive or second hand goods in one controlled area that is governed by an imposed code of conduct;

"food" means anything other than drugs, which is ordinarily used or intended to be used in human consumption, including drink, whatever its form or stage of preparation as approved by the Health Officer;

"hawker" means any person who carries on the business of selling goods whilst travelling about for that purpose from place to place with the goods, either on foot or with a carrier but does not include—

(a) a baker or her or his employee in respect of the sale of bread;

(b) a dairy marketing authority or a dairyman or its employee as the case may be, in respect of the sale of milk;

"Environmental Health Practitioner" means an officer registered as such by the Environmental Health Practitioners Council of Zimbabwe and designate by the council as such;

"licence" means a licence issued by the Council in terms of these by-laws;

"Medical Certificate of Health" means a medical certificate of health referred to in section 13(1);

"people's market" means any designated place and premises set aside by the council for the purpose of vending and flea market providing a place of sale of approved goods and food stuffs;

"permit" means any temporary document issued by the council permitting the use of stall, table or stand at a people's

market or at any given function or event, for a period not exceeding three months;

"public place" means any bridge, enclosure, footpath, garden, open space, pavement, road, sanitary lane, side walk, square, subway or street of the nature of a thoroughfare vested in or controlled by the council and to which the public or any section of the public has access;

"sell" in addition to its ordinary meaning means barter or exchange, or expose or prepare for a sale or to attempt to sell, offer, expose or display for sale a good or food stuff;

"stable or table" means any surface constructed above ground level, or similar structure, whether or not it is situated within a building or under a roof or other structure;

"stall or table holder" means any person who carries on the business of selling goods in or within a flea market premise or designated site;

"stand" means any area designated as a stand to carry out a business activity and has been provided with sanitary facilities and water;

"under garments" means bras, panties, socks, pantyhose, etc;

"vendor" means any person who sells goods from one or more fixed places in or on any public place as designated by council and should be a holder of a licence or a permit.

Control of hawkers

4. No person, whether as principal or agent, is to carry on the business of a hawker unless—

(a) he or she is the holder of a hawker licence or is engaged or employed by the holder of a hawkers employer's licence; and

(b) he or she is the holder of a valid medical certificate of health if he or she sells food in any area specified in the First Schedule.

Control of vendors

5. (1) No person shall, whether as principal or agent carry on the business of a vendor unless—

(a) he or she is the holder of a vendor's licence or is engaged or employed by a holder of a vendor employer's licence; and

(b) he or she is the holder of a valid medical certificate of health (food handlers medical certificate); in any area specified in the First Schedule if he or she sells food.

(2) The council may, by notice, designate any place or stand in any area specified in the First Schedule, authorise vendors, subject to the condition or restrictions imposed upon the licence in terms of which they are authorised to carry on their business, to carry on such business places or stands on such days and during such hours and in respect of such goods as may be specified in the notice.

Control of flea market trading, employers of hawkers and vendors

6. No person shall engage, allow or employ another, whether as an agent, an employee, a hawker or a vendor unless—

(a) the first mentioned person is the holder of a hawkers employer's licence or a vendors employer's licence, as the case may be; or

(b) the hawker or vendor concerned is the holder of a hawker's licence or a vendor's licence, as the case may be;

(c) unless the hawker or the vendor concerned, is the holder of a valid Medical Certificate of Health for the sale of food.

Application for hawker's or vendor's licence or permit

7. (1) An application for, hawkers or vendor's licence shall be made to the council, and shall be in the form prescribed by council and be accompanied by—

(a) the appropriate fee;

(b) two recent identical passport size photos;

(c) a valid Medical Certificate of Health in the case of an applicant who wishes to sell food.

(2) An application for hawkers or vendor's permit shall be made to the council, and shall be in the form prescribed by council and be accompanied by—

(a) the appropriate fee;

(b) two recent identical passport size photos;

(c) a valid Medical Certificate of Health in the case of an applicant who wishes to sell food.

(3) The permit shall be valid for a period of three months.

(4) Upon approval of application by council, the applicant shall pay the permit fees or licence fees as prescribed by council.

Land set aside for people's markets

8. The Council may set aside land or premises for the purpose of people's markets and may divide such land or premises into separate stands, stalls or tables, as the case may be.

Application for bay, stall or table in people's market

9. (1) Any person wishing to use a bay, table or stall in a people's market shall apply to Council for a licence or permit.

(2) Upon application being made in terms of subsection (1), and on payment of the appropriate fee which shall be fixed by council, the designated officer may allocate to theapplicant a bay, stall or table, as the case may be and shall issue him or her with a licence or permit which clearly defines the area of the bay, stall or table and state the name of the licence or permit holder.

(3) A licence or permit issued in terms of this section shall not be transferred by the person to whom it was issued to any other person(s)without the written authority of council.

Vacation of bay, stall or table in people's market

10. A person who has been allocated a bay, table or stall in a peoples market shall vacate such a bay, stall or table promptly on the

expiry of the licence unless he or she has made an application for further use of such a bay, stall or table and has paid the required fee before such expiry.

Application for hawker's, vendor's licence or flea market employer's licence

11. An application for a hawker's employer's or a vendor's employer's licence or permit shall be made to the council and shall—

(a) be in the form prescribed by council;

(b) be accompanied by the fee specified in the Second Schedule.

Applicants to permit inspection

12. Any person who is an applicant in terms of section 7 or 8, at the request of an Environmental Health Officer or any person specially authorised thereto by the council shall—

(a) produce for inspection to Council any food cart, container, clothing or equipment to be used in connection with the business for which the licence is required;

(b) permit Council to inspect any food cart, container, storage-premises, site clothing or equipment which is to be used in connection with the business for which the licence or permit is required;

(c) permit Council to inspect monthly rental payments and compliance.

Medical Certificate of Health

13. (1) Any person who, is the holder of a licence or permit, or as the agent, wishes to carry on the business of selling food as a hawker or vendor shall obtain a certificate from a medical practitioner or medical officer of health, certifying that, at the date of certification, he or she was examined and found not to be suffering from any contagious and infectious disease in terms of the Public Health (Food handlers Medical Examination) Regulations 1994, published in Statutory 41 of 1994.

(2) A Medical Certificate of Health shall be valid for twelve months from the date of issue:

Provided that nothing in this subsection shall be construed as preventing the council from cancelling a licence issued in terms of these by-laws, despite the fact of the validity of any such Certificate held by the hawker or vendor concerned.

Restrictions and conditions of licence or permit

14. (1) The council may, in issuing or renewing a licence or permit—

(a) restrict the applicant to dealing in goods listed in his or her application; restrict the applicant dealing in certain goods, whether listed in his or her application or not, if, in its opinion, not to make such restriction would—

(i) adversely affect any existing trade or business carried on in the area of jurisdiction of the council;

(ii) be undesirable in the interest of public health, public safety or public morality;

(iii) create a fire hazard which could endanger life or property;

(b) restrict the applicant to carry on the business for which the licence is required to certain areas or sites and to certain hours and days;

(c) in the case of an application for a hawker's employee's licence or vendor's employer's licence, restrict the applicant to engaging or employing not more than a specified number of hawkers or vendors, as the case may be;

(d) require the applicant to affix to any food cart, container or stall used in connection with the business for which the licence is required such identification mark as the council may specify;

(e) require the applicant, in the case of hawker's employer's licence or vendor's employer's licence, to ensure that his or her agent or employee, whilst engaged upon the business for which the licence is required, such employer's licence for the purposes of identifying the applicant as the council may specify.

(2) Any condition or restriction imposed by the Council in terms of subsection (1) shall be specified on the licence concerned—

(a) conditions to be imposed on the vendors licence for open fires for roasting—

(i) ensure that there are no combustible materials in proximity to the area;

(ii) open fire should be consistently checked when not in use;

(iii) never use fuels which are not recommended as safe for use on a roasting fire by Council;

(iv) avoid using flammable liquid to start up a fire;

(v) site spot for open fire in proximity to the building openings (doors or windows) must be avoided;

(vi) ensure open fire is totally extinguished with water after use and dispose ashes or ambers in a safe place or kept safely for re-use as the case may be.

Renewal and variation of licence or permit

15. (1) A licence issued in terms of these by-laws shall be in the form prescribed by council and shall be valid up to the 31st of December of the year for which it was issued or renewed.

(2) The holder of a licence for the next succeeding year shall apply to the council for the renewal therefore during the month of December preceding that year, and the provisions of sections 7 and 8 shall, *mutatis mutandis*, apply:

Provided that the Council may require the production of the licence or permit previously issued to him or her.

Refusal of application or renewal of licence or permit

16. (1) The council may refuse to issue or renew a licence if—

(a) the applicant has failed to adhere to council by-laws and has been fined three consecutive times;

(b) the applicant is guilty of any offence under the Rural District Councils Act [*Chapter 29:13*];

(c) the applicant is guilty of any offence which involves carelessness concerning or a disregard for, cleanliness, hygiene, public health or public nuisance;

(d) sale of illegal items, sleeping overnight at the site or fighting at the site.

(2) In the opinion of the Council the renewal will be denied if—

(i) the renewal would adversely affect any existing trade or business carried on in the area of jurisdiction of the Council; or

(ii) the goods sought to be dealt in ought not to be dealt in, in the interest of public health, public safety or public morality; or

(iii) any food cart, container, stall, storage-premises, clothing or equipment used, or to be used, in connection with the business for which the licence is required is unsuitable in the interest of public health; or

(iv) there are sufficient hawkers or vendors dealing in the goods, in respect of which an applicant requires the licence or permit; or

(v) has not paid for the licence or rentals for the previous year; or

(vi) has not complied with any of the terms and conditions set by Council.

Cancellation of licence or permit

17. (1) The Council may cancel a licence or permit if the holder thereof at any time after the issue of the licence or permit—

(a) has been convicted of any offence referred to in of section 16(1); or

(b) does not maintain a satisfactory standard of cleanliness and public safety in respect of his or her person or employee of his or hers who is engaged or employed in the business to which the licence or permit relates; or

(c) does not maintain a satisfactory standard of cleanliness in respect of any food cart, container, stall, storage-premises clothing or equipment used by him or by any agent of his or hers in connection with the business to which the business licence relates; or

(d) sells illegal items or goods, makes illegal fires; or

(e) has not complied with any of the terms and conditions set by council.

(2) The Council shall temporarily withdraw a hawker's or vendor's, or stall holder's licence or permit if the holder thereof is dealing in food and is found to be suffering from a contagious and infectious disease:

Provided that the council shall, at no extra charge, return the temporarily withdrawn licence if—

(a) he or she produces a Medical Certificate of Health issued after the date of withdrawal of the licence, certifying that he or she is no longer suffering from a contagious or infectious disease; or

(b) he or she applies to the council for his or her licence to be restricted to the sale of goods other than food, and submits his or her licence to the council for the purpose of the relevant endorsement to be made.

(3) If any hawker or vendor engaged or employed by the holder of a licence or permit in connection with the sale of food is found to be suffering from a contagious and infectious disease, the council may, by notice, in writing, direct him or her to cease forthwith engaging or employing that hawker, vendor or stall holder in connection with the sale of food, and if such direction is not complied with forthwith, the council shall cancel the licence or permit:

Provided that the council shall, at no extra charge, return to the holder the temporarily withdrawn licence if he or she produces a Medical Certificate of Health issued after the date of withdrawal of the licence, certifying that the hawker or vendor concerned is no longer suffering from a contagious and infectious disease;

(4) Any licence cancelled and temporarily withdrawn in terms of this section shall be returned to the council with immediate effect.

Inspection of food carts, stall or bay, storage or premises and peoples' markets

18. (1) A Health Officer or any person specially authorised thereto by the council may at any reasonable time inspect any food cart, container, stall, bay, storage premises, clothing or equipment used by the holder of a licence or a hawker or a vendor engaged or employed by the holder of a licence in connection with the business to which the licence or permit relates, in order to ascertain whether a clean and sanitary condition is being maintained and fire precautionary measures taken; or the provisions of these by-laws are being complied with.

(2) No person shall hinder, obstruct or prevent a health officer or person authorised in terms of subsection (1) from making an inspection.

Hygiene and food safety

19. (1) No holder of a licence or any person employed or engaged by the holder of a licence shall allow or permit any food cart, container, stall, bay, storage-premises, clothing or equipment used in connection with the business to which the licence or permit relates to be in a dirty or insanitary condition.

(2) No holder of a licence or permit shall sell or allow to be sold, any food which is not in a sound or wholesome condition.

(3) No hawker or vendor shall sell any food—

(a) unless he or she has taken adequate precautions to safeguard the food from dirt, dust, flies or other contamination;

(b) whilst to his or her knowledge, he or she is suffering from any contagious or infectious disease.

(4) No vendor or hawker, shall use any vehicle, container, stall or table, storage-premises, clothing or equipment, used for transporting or storing food, for any other purpose.

(5) No holder of a licence engaged in the sale of second hand clothes shall be allowed to sell under garments as defined in section 3.

Removal of waste

20. (1) A hawker or vendor shall—

(a) not drop litter of any sort onto the land surface or street;

(b) on request by any official of the council, move his or her receptacles and goods so as to permit such official to clean the street or gutters;

(c) remove all receptacles and goods from his or her place or stand on the completion of business for the day, and shall leave his or her place or stand in a clean condition;

(d) not sleep at the area of business;

(e) totally extinguish any open fire (roasting) and safely dispose of ashes or ambers as recommended by Council by-laws.

(2) Any hawker or vendor who will not comply with subsection (1) shall be liable to a fine specified in the Third Schedule.

Replacement of lost or damaged licence and permit

21. Any person who has been issued with a licence or permit in terms of these by-laws may obtain a duplicate thereof—

(a) on certifying to the council that the licence or permit concerned has been lost or destroyed; and

(b) on payment of the appropriate fee.

Change of address or abandonment of business

22. (1) A holder of a licence shall, within seven days of the abandonment of his or her business, or any change of address of his or her business or his or her storage-premises, notify the council, in writing, of such change of address or abandonment as the case may be.

(2) A vendor or hawker who fails to notify council of his or her abandonment within fourteen days shall have his or her licence cancelled.

Appearance of vending bays or obstruction or nuisance

23. (1) Vending bays shall be as demarcated by the Council.

(2) Vending bay shades, shall be determined by Council.

(3) Any vendor whose shade is not approved in terms of council's standards would be requested to rectify within seven (7) days, failure of which council will destroy it without further notice.

(4) All goods on display should be within the bay.

(5) Display tables of vendors who sell food should be 1 meter above ground level.

(6) Goods that are displayed outside the bay or overlapping or displayed below the stipulated height as mentioned in subsection (5) will attract a fine specified in the Third Schedule.

(7) Any police officer or person specially authorised thereto by the council may direct any hawker or vendor who is directly or indirectly obstructing the use of any public place, or is a nuisance to any person in the vicinity of any public place, to move for such distance as may be reasonable or to cease such obstruction of or to abate such nuisance, as the case may be. Failure to do so, will attract a fine specified in the Third Schedule.

(8) No hawker or vendor shall refuse to comply with any direction given in terms of subsection (1). Anyone who refuses shall have the said item removed and should pay a fine specified in the Third Schedule.

Fees

24. The council shall fix fees for any application made in terms of these by-laws and for any licence, permit,certificate or duplicate thereof, issued in terms of these by-laws:

Provided that—

(i) any fees shall be fixed through a council's resolution; and

(ii) the fee for a licence issued after the 30th of June in any year shall be fifty *per centum* of the annual fee for such licence.

Offences and penalties

25. (1) Any person who—

(a) fails to comply with the provisions of these by-laws;

(b) contravenes any condition or restriction of a licence or permit issued to him or her;

(c) transfers to another or makes fraudulent use of any licence, permit or certificate issued in terms of these by-laws with intent to deceive;

shall be liable to a fine specified in the Third schedule.

(2) Any person who—

(a) unlawfully attempts to obstruct, obstructs or causes to be obstructed an authorised person;

(b) threatens or assaults an authorised person in the execution of his or her duties:

shall be liable to a fine specified in the Third Schedule.

Seizure of goods

26. (1) An authorised person may seize any goods that is the subject matter of an offence in terms of these bylaws and make a record of the owners of the goods so seized.

(2) The goods so seized shall be taken to a secure warehouse designated for such purpose by the council.

(3) The goods seized shall only be released upon the owner paying—

(a) the prescribed penalty within the prescribed period; and

(b) such storage charges as prescribed by the Council.

Disposal of unclaimed goods

27. (1) Any goods seized in terms of section 26 which remain unclaimed—

(a) in the case of perishable food, for a period of twenty-four hours from date of seizure, shall be disposed in terms of the Food and Food Standards Act [*Chapter 15:04*]; or

(b) in the case of any other goods, for a period of three (3) months, shall be disposed subject to the procedure given in subsection (2).

(2) Where persons whose goods were seized by council in terms of subsection (1) do not claim their good within thirty (30) days, council shall publish in a newspaper of wide circulation within the council area a list of the seized goods which remain unclaimed and call upon the owners to claim the same within fourteen (14) days.

(3) If the 14 days referred to in subsection (2) lapses, Council shall sell by public auction any goods that is the subject of the seizure.

(4) Council shall operate an account into which money realised from the sale of unclaimed goods shall be deposited.

FIRST SCHEDULE (*Sections 4, 5, 8 and 14*)

PART 1

AREAS WHERE TRADING IS PROHIBITED OR RESTRICTED

1. Restaurant.
2. Tea room or café.
3. Hotels.
4. Boarding houses.
5. Lodging houses.
6. Butcheries.
7. Fishmonger's.
8. Bakeries.
9. Food factories.
10. Aerated-water factory.
11. Food purveyor's.
12. Caterer's.
13. Meat purveyor.
14. Fruits and vegetables dealer.
15. Food vending machine.
16. Barber.

17. Hairdresser.
18. Laundry houses or laundry depot.
19. Stables.
20. Food premises.
21. Service stations.
22. Garages.
23. Financial institutions.
24. Professional bodies.
25. Funeral parlours.
26. Kiosks.
27. Curio shops.
28. In front of all types of shops (except designated areas).
29. On pavements or public walkaways.
30. On roads or parking places and sanitary lanes.
31. Any area restricted by Council.

PART 2

AREAS WHERE TRADING IS PERMITTED PROVIDED ONE HAS A LICENCE OR PERMIT OR AUTHORITY

- Designated vending sites.
- Areas around schools and tertiary institutions.
- Public meeting places.
- At all public institutions which includes but not limited to churches, pre-schools and hospitals.
- Along major tourist routes.
- Major road intersections.
- All shopping centres.
- All stadia and recreational areas.
- Any place approved by the local authority.

PART 3

PERMITTED ITEMS TO BE SOLD

The items to be sold are the following and are subject to the health officer approval:

1. New and second hand clothes, footwear, bolts and nuts, belts and accessories.
2. Fruits, vegetables, tubers, dried food stuff.
3. Airtime, newspapers and periodicals.
4. Cell phone chargers and accessories.
5. Eggs, amacimbi or madora (Mopani worms) etc.
6. Firewood.
7. Homemade items which include floor polish, brooms, wooden cooking utensils and scouring powders.
8. Herbalist and traditional medicines and services.
9. Roasting of nuts, sweet potatoes and maize.
10. Curios, flowers, worms and nursery plants.
11. Tyres, tubes, empty containers and other small mechanical merchandise.
12. Waste recycling, waste such as bottles, plastics, metals etc.
13. The list may be reviewed by council.

SECOND SCHEDULE (*Fees*)

Description	Section	Amount (USD)
Application fee for Vendors or Hawkers licence	7(1)	0,00
Application fee for permit for Vendors or Hawkers	7(2)	0,00
Vendors or hawkers licence fee Vendors or hawkers permit fee per quarter	7(3)	34.76 Annual 0,00
Bay or stall permit fees per day	9(2)	0,58
Application for renewal of licence or permit	15	0,00
Vendors Employer's Licence Fees	24	0,00
Hawkers Empolyer's Licence Fees	24	0,00

THIRD SCHEDULE

Penalties

Section	Description of offence	Penalty (USD)
4, 5 and 11	Sells goods without a valid licence or permit	10,00
9 (3)	Transfer a licence or permit to another without council authority	0,00
12	Failure to permit inspection	0,00
10	Leaves goods on the bay after expiry of licence	10,00
19(1)	Allow or permit any food cart, container, stall, bay, storage-premises, clothing or equipment used in connection with the business to which the licence or permit relates to be in a dirty or insanitary condition.	10,00
19(2)	Sell or allow to be sold, any food which is not in a sound or wholesome condition.	10,00
19(3)	Selling food whilst suffering from a contagious disease	10,00
23(6)	Displays goods outside the vending bay	10,00
25(2)	Hinders, obstructs or prevents a health inspector or authorised person to carry out his duties	10,00

NB: The above mentioned fines or penalties and charges are payable in local currency at the prevailing Interbank rate.